

# Jawahar Lal Vishwakarma v. State of U.P.

Allahabad High Court · Division Bench · 22 August 2012 · Writ - C No. 36758 of 2012 · **Writ disposed; petitioner directed to CGRF under clause 7.10.**

## HEADNOTE

A writ seeking quashing of an electricity bill, with no recovery under challenge, is not decided on merits where clause 7.10 of the U.P. Electricity Supply Code, 2005 provides a Consumer Grievance Redressal Forum. The consumer is directed to that Forum, which shall decide the complaint expeditiously, preferably within three months of production of a certified copy of the order.

## FACTUAL SUMMARY

Jawahar Lal Vishwakarma petitioned the Allahabad High Court to quash an electricity bill dated 28 January 2012. No recovery proceeding was under challenge. On 30 July 2012 a Division Bench directed the writ to be listed before the Corporations Bench. At the hearing on 22 August 2012 the petitioner submitted that he had already filed a complaint which the officer concerned had not decided. Counsel for the respondents pointed to the statutory remedy under clause 7.10 of the U.P. Electricity Supply Code, 2005.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::7.10

CGRF route for billing grievances

#### HOLDING

Where a consumer seeks quashing of an electricity bill in writ and the licensee points to the statutory grievance remedy, the High Court will not decide the bill and will direct the consumer to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005; if an appropriate application is filed, the Forum shall decide the complaint expeditiously, preferably within three months of production of a certified copy of the order. ¶ 1

## PRINCIPLE TAGS

**clause-7.10-forum-ombudsman-route-for-billing-grievances** A writ seeking quashing of an electricity bill, with no recovery under challenge, is not decided on merits where clause 7.10 of the U.P. Electricity Supply Code, 2005 provides a Consumer Grievance Redressal Forum.. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — VALIDITY OF THE ELECTRICITY BILL DATED 28.1.2012

Writ disposed by relegating the consumer to the CGRF; the bill was neither quashed nor upheld. ¶ 1